

25PSCV00155 25PSCV00155

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The People of the State of

California v. Flumgio Technology, Inc., et al. ,

Case No. 25PSCV00155

ORDER ON MOTION

FOR PROTECTIVE ORDER AND MOTIONS TO COMPEL

1. Plaintiff People of the State of California's Motion for

Protective Order is GRANTED.

2. Plaintiff People of the State of California's Motion to Compel

Further Responses and Initial Responses is GRANTED.

Background

Plaintiff

The People of the State of California ("Plaintiff") allege that since at least

April 2021, Flumgio Technology Inc., Berkeley Int'l Business Crew Inc.

("Berkeley") and Zaoyu Zhu ("Zhu") (together, "Defendants") have violated

tobacco licensing laws by improperly importing, distributing, and selling flavored disposable e-cigarettes since at least April 2021. Specifically, Plaintiff alleges that Defendants continued to import, distribute, and sell flavored e-cigarettes into California that retail stores were banned from selling to the public even though California banned the retail sale of flavored tobacco products in December 2022. Plaintiff further alleges that, since at least December 2022, Defendants have misled the public into believing that their “Clear” flavored e-cigarettes were unflavored when they have a distinguishable taste.

On

January 15, 2025, Plaintiff filed a complaint, asserting causes of action against Defendants and Does 1-100 for: (1) Business and Professions Code, § 17500 et seq. (False Advertising Law) and (2) Business and Professions Code, § 17200 et seq. (Unfair Competition Law).

Discussion

1. Stipulated Protective Order

Plaintiff moves the court for entry of a protective order entered into with Defendants Berkeley Int'l Business Crew Inc. and Zaoyu Zhu. Plaintiff was unable to execute the agreement with Flumgio Technology, Inc., due to a pending motion of counsel to be relieved at the time

(order entered on May 8, 2026).

Plaintiff

includes a copy of the stipulated protective order. (Declaration of David

Goodwin, Ex. A.) The stipulated order is accepted by the court.

2. Motions to Compel Further Responses to

Form Interrogatories (set one), numbers 3.1 and 15.1, and initial responses to

Special Interrogatories (set one) and Request for Production of Documents (set

one)

Plaintiff

moves the Court for orders compelling Flumgio to provide further responses to

its Form Interrogatories, Set No. One (i.e., Nos. 3.1 and 15.1), and to provide

initial responses to its Special Interrogatories and Requests for Production of

Documents, Sets No. One.

Legal

Standards

A

response to interrogatories is due within 30 days after service. (Code Civ.

Proc., § 2030.260, subd. (a).) “If a party to whom interrogatories are directed

fails to serve a timely response, . . . [t]he party propounding the

interrogatories may move for an order compelling response to the

interrogatories.” (Code Civ. Proc., § 2030.290, subd. (b).)

“The

court shall impose a monetary sanction . . . against any party, person, or

attorney who unsuccessfully makes or opposes a motion to compel a response to

interrogatories, unless it finds that the one subject to the sanction acted

with substantial justification or that other circumstances make the imposition

of the sanction unjust . . .” (Code Civ. Proc., § 2030.290, subd. (c).)

“(T]he

propounding party may move for an order compelling a further response if the

propounding party deems that any of the following apply: (1) An answer to a

particular interrogatory is evasive or incomplete. (2) An exercise of the

option to produce documents under Section 2030.230 is unwarranted or the

required specification of those documents is inadequate. (3) An objection to an

interrogatory is without merit or too general.” (Code Civ. Proc., § 2030.300,

subd. (a).)

The

motion must include a meet and confer declaration which “state[s] facts showing

a reasonable and good faith attempt at an informal resolution of each issue

presented by the motion.” (Code Civ. Proc., §§ 2016.040; 2030.300, subd.

(b)(1).) “In lieu of a separate statement required under the California Rules

of Court, the court may allow the moving party to submit a concise outline of the discovery request and each response in dispute.” (Code Civ. Proc., § 2030.300, subd. (b)(2).)

Notice

of the motion must be provided “within 45 days of the service of the verified response, or any supplemental verified response, or on or before any specific later date to which the propounding party and the responding party have agreed in writing. . .” (Code Civ. Proc., § 2030.300, subd. (c).) The responding party has the burden of justifying the objections to the requests. (Coy v. Superior Court (1962) 58 Cal.2d 210, 220-221.)

“The

court shall impose a monetary sanction. . . against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a further response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2030.300, subd.

(d).)

A

response to a request for production of documents is due within 30 days after service. (Code Civ. Proc., § 2031.260, subd. (a).) “If a party to whom a demand

for inspection, copying, testing, or sampling is directed fails to serve a timely response to it, . . . [t]he party making the demand may move for an order compelling response to the demand.” (Code Civ. Proc., § 2031.300, subd. (b).)

“[T]he court shall impose a monetary sanction . . . against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a response to a demand for inspection, copying, testing, or sampling, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2031.300, subd. (c).)

Merits

Plaintiff's

counsel David C. Goodwin represents, and/or the accompanying exhibits reflect, as follows:

On

September 11, 2025, Plaintiff served its Form Interrogatories, Set No. One.

(Goodwin Decl., ¶ 2.) On October 14, 2025, Flumgio served its objections and responses thereto. (Id., ¶ 3.) On October 16, 2025, Flumgio served a verification. (Id.) On November 18, 2025, counsel met and conferred, during which time Flumgio's counsel stated that they intended to amend their

responses to include additional information. (Id., ¶ 4 and 5, Ex. A.)

Counsel agreed to extend the time to bring any motion to compel further until amended responses were served. (Id.)

On

October 27, 2025, Plaintiff served its Special Interrogatories and Requests for Production of Documents, Sets No. One. (Id., ¶ 6.) On December 1, 2025, Flumgio's counsel requested, and received, an extension of time to January 1, 2026 to serve responses thereto. (Id., ¶ 7, Ex. B.) Flumgio did not serve its responses on January 1, 2026. (Id., ¶ 8.) On January 7, 2026, Goodwin emailed Flumgio's counsel stating Plaintiffs intention to file this motion. (Id., ¶ 9). On January 8, 2026, Goodwin spoke with Curtis Axel regarding the anticipated filing of this instant motion and was advised that Flumgio's counsel was no longer authorized to work on the case. (Id., ¶ 10, Exh. B.) Curtis Axel sent a confirmation email of the discussion afterward.

(Id.)

On

January 20, 2026, the Court denied Plaintiff's request for an Informal Discovery Conference, and deferred any consideration, due to the pending motion to be relieved as counsel. The Court instructed Plaintiff to reserve a hearing date and file a motion. Plaintiff

filed the motion on January 26, 2026. Flumgio Technology, Inc. through former counsel requested the Court defer ruling on the March 17, 2026, set hearing, due to the pending motion to be relieved (order entered on May 8, 2026). The Court continued the hearing from March 17 to June 23, 2026.

Beginning with the motion to compel initial responses to special interrogatories and requests for production of documents, the motion is granted. The lack of counsel led to the non-service of any verified responses to Special Interrogatories and Requests for Production of Documents, even after the extension. Flumgio is ordered to serve responses within 30 days of this order.

The motion to compel further responses to special interrogatories is also granted. The motion is timely and proper, and the responses to Form Interrogatories numbers 3.1 and 15.1 are incomplete. The lack of counsel led to the non-service of further amended verified responses to Form Interrogatories, as previously discussed. Flumgio is ordered to serve complete, straightforward responses within 30 days of this order.

Flumgio may only appear in this action through counsel, and therefore cannot serve discovery responses without counsel. (Merco Constr. Engineers, Inc.

v. Municipal Court (1978) 21 Cal.3d 724, 731.) The failure to serve new

responses, even if due to the failure to retain new counsel, may lead to the imposition of evidentiary, issue, or terminating sanctions in the form of an order striking the answer of Flumgio.